

Ravinder Singh vs Palvinder Kaur on 18 May, 1993

Equivalent citations: I(1994)DMC328, (1994)107PLR113

JUDGMENT

Amarjeet Chaudhary, J.

1. The appellant (hereinafter referred to as the petitioner) had filed a Diverce Petition under Section 13 of the Hindu Marriage Act in the Matrimonial Court, Chandigarh. The Court vide its order dated 1.6.1990 dismissed the same.

Aggrieved against the judgment, the petitioner has field this appeal.

2. Shorn of unnecessary details, the facts of the case are that the marriage between the petitioner and respondent Palvinder Kaur was soleminized on 27.6.1985 at Yamuna Nagar according to Sikh rites. The said marriage was settled through a matrimonial advertisement pursuant to which the appellant had responded.

3. In the Divorce Petition the allegation against the respondent wife was that the respondent in the advertisement gave wrong particulars about her age and height. Later on the petitioner came to know that the said particulars were false. The respondent was above 30 years of age and her height was 5'--- 1". This caused mental cruelty to the petitioner. The other instance of cruelty is that the respondent just after the Anandkaraj went inside her house and dressed herself in white clothes and refused to accompany the petitioner to Chandigarh. It was after great persuasion of the petitioner's parents, relations and friends that the respondent agreed to accompany the petitioner to Chandigarh, Another instance of cruelty is that the behaviour of the respondent was not considerate towards the petitioner right from the date of marriage. The other instance of cruelty is that according to the petitioner the respondent never stayed with him in one room and had refused to live with him at Chandigarh. As such despite petitioner's best efforts the marriage was never consummated which resulted in great mental agony to him. According to the petitioner, the respondent used to misbehave and insult him and refused to prepare tea for the relations and friends on their visits.

4. On 13-7-1985 when respondent's brother Paramjit Singh visited Chandigarh, he was told about the behaviour of his sister. Thereafter the respondent left for her parental house with her brother and while leaving they had taken all the valuables and jewellery and thereafter she did not return to her matrimonial home. Thereafter the father of the petitioner tried to settle the matter. For that purpose many punchayats were convined but of no avail in May 1986, the petitioner alongwith his many friends and relations went to respondent's house in order to bring her back. On every occasion, her brother Gurnam Singh misbehaved with them and they were turned out of the house. On 23-6-1987 the petitioner was told by Dhandev Singh that the respondent had moved an

application in the Legal Aid Cell, Sector-17, Chandigarh for compromising the matter with the petitioner. The petitioner was asked to visit Chandigarh on 29-7-87, but on his visit, he came to know that the respondent-wife had already withdrawn the said application on 26-6-87. Thereafter the petitioner went to the respondent's house and again persuaded her to accompany him, but she did not agree. In this manner, according to the petitioner, the respondent has committed cruelty and deserted him.

5. The Divorce Petition was resisted by the respondent and the allegations were denied. The respondent had taken a categorical plea in the written statement that at the time of betrothal ceremony and on other occasions the petitioner had seen and talked to her. As such, it cannot be said that before the marriage particulars furnished by her were not correct. It has also been stated by the respondent that the petitioner did not like her from the beginning and was interested to marry some other girl. It has further been stated by the respondent that she was given frequent beatings, but she did not complain to anybody and had gone through all the trial and tribulations with the hope that the petitioner would mend his ways some time. It is also the case of the respondent that the petitioner had demanded cash and valuables from her parents, but her parents could not meet the demand being poor. It has also been stated by the respondent that she had sex with the petitioner a number of times as and when they met and lived together. The respondent also stated that the petitioner had not arranged any house in Chandigarh. As such the question of living with him at Chandigarh did not arise. It was also stated in the written statement that the petitioner had obtained her signatures on some blank paper under coercion to the effect that they lived at Mohali.

6. The Matrimonial Court had framed the following issues :--

(1) Whether the respondent has treated the petitioner with cruelty, so as to entitle him to a decree of divorce ? OPP (2) Whether the respondent has deserted the petitioner for a continuous period of three years. If so, its effect POPP. (3) Relief.

The Court on issues No. 1 & 2 returned findings in the negative and dismissed the Divorce Petition.

7. The Counsel for the petitioner has taken the same pleas as were taken before the Trial Court. He has read the Divorce Petition, reply and evidence adduced by both the parties. After going through the evidence. I have reached the conclusion that there is no force in the submissions of the Counsel for the petitioner. As such the appeal deserves to be dismissed.

The scanning of the evidence shows that the allegations levelled against the respondent have not been substantiated by any convincing evidence. It does not appeal to logic that a bride would remove her ceremonial clothes and dress herself in odd manner. This sort of attitude and behaviour could be of some insane person. It is not the case of the petitioner that the respondent was insane or of unsound mind. Satnam Singh while appearing as P.W. had denied any dispute having taken place after Anandkaraj ceremony at Yamuna Nagar. The petitioner had not produced Satinder Singh to whom the respondent allegedly refused to serve tea on his visit to petitioner house. On the other side, Satnam Singh had stated that on his visit to the house of the petitioner after a week of the marriage, he had not seen the respondent in the petitioner's house. In the light of the testimony of

this witness the petitioner's allegation that the respondent refused to serve tea to him on his visit to petitioner's house, is totally false. The story of submitting of an application for compromising in the Legal Aid Cell in Sector-17, Chandigarh appears to be concocted. During the course of arguments, the petitioner's Counsel referred to a Chit Exhibit R1/A which is alleged to have been sent to the respondent by one Shri Dhandev Singh. It is not understandable in which capacity the Society run by Dhandev Singh could have entertained respondent's application for the purpose of divorce. Neither Dhandev Singh was examined nor any application was brought on record. It will be worthwhile to add that the respondent had denied having made any such application by her to the Society alleged to be run by Dhandev Singh. The respondent while appearing as a witness had stated that she had sex with her husband a number of times.

8. The argument of the Learned Counsel for the petitioner that the respondent did not reside at Chandigarh is also without any force. The Counsel for the petitioner has not been able to show that the petitioner had taken any house on rent at Chandigarh, rather his plea was that his brother had a small house at Chandigarh. From this an inference can be drawn that the petitioner had not taken any separate house at Chandigarh. The plea of the Counsel for the petitioner that on 13-7-1985 the brother of the respondent had taken her to Mohali and she left with him on 14-7-1985 and the reafter she did not come back to live with him despited efforts, is also without any substance. On 14-7-1985 respondent-wife had left Mohali with the consent of the petitioner with her brother. Thereafter nobody came to inquire about her. The relations of the respondent had tried to patch up the matter, but the petitioner was not willing to keep her. The respondent had written certain letters from the place of her posting to the petitioner, but the same were never acknowledged by him.

9. It will be worthwhile to add that the respondent before the Matrimonial Court as well as before this Court had expressed her desire to live with the petitioner. This Court had also made efforts to unite the couple, but the behaviour of the petitioner was unbecoming and he was not ready to take her back on any condition. Rather the petitioner in his cross-examination had stated in clear terms that he was not ready to keep the respondent with him. In view of the conduct of the petitioner, it can be safely concluded that the respondent had made efforts to settle down with the petitioner. As such the allegation of desertion levelled by the petitioner does not appear to be correct.

10. From the case file, it is seen that the petitioner was a divorcee at the time of his marriage and his behaviour towards his wife remained indifferent from the date of marriage. He wanted to get rid of her on one pretext or the other. In order to obtain divorce he levelled allegation of cruelty and desertion, but he miserably failed to substantiate the same. Mere assertions are not sufficient until they are substantiated by cogent evidence.

11. As mentioned in the earlier part of the judgment, the petitioner was a divorcee at the time of his marriage with the present respondent and now he wants to take divorce from his second wife also. From his conduct, it appears that he has scant regard for the sacred ties of marriage. He takes the marriage very lightly and has false notion in his mind that the marriage can be broken at any time. In our society, the marriage is sacrament and its sanctity is to be preserved.

12. In the instant case, I am convinced that the fault lies with the husband. The mere fact that the respondent had not lived with the petitioner for some time is not a sufficient ground to grant divorce. The petitioner should further prove that the wife had no intention to live with him when she parted company. In the present case this evidence is missing. As mentioned earlier, the respondent was willing to live with the petitioner. In *Suresh Kumar v. Sham Lata*, 1989 (1) P.L.R. 468 it was held by the Division Bench of this Court that cruelty as contemplated under Section 13(1)(ia) of the Hindu Marriage Act is a conduct of such a type that the petitioner cannot reasonably be expected to live with the respondent. It has to be of a type which should satisfy the conscience of the Court that the relationship between the parties had deteriorated to such an extent that due to the conduct of the either spouse it has become impossible for them to live together without mental agony, torture or distress.

13. In view of the foregoing discussion, there is no merit in the appeal and the same is dismissed with no order as to costs.